**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under Section 331(1) of the Code of Criminal Procedure Act No.15 of 1979 read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

**Court of Appeal No:**
**CA/HCC/0127/2023**
**High Court of Anuradhapura**
**Case No: HC/02/2016**

Sembukutty Arachchilage Nishshanka

**Accused-Appellant**

**Vs.**

The Hon. Attorney General
Attorney General's Department
Colombo-12

**Complainant-Respondent**

**BEFORE** : **P. Kumararatnam, J.**
**R. P. Hettiarachchi, J.**

**COUNSEL** : **Shavindra Fernando, PC, with Nipun Samaratunga, Sandani Wijendra and Amanda Imbulana for the Appellant.**
**Sudharshana De Silva, PC, ASG with Malik Azeez, SC for the Respondent.**

**ARGUED ON** : **27/01/2026**

**DECIDED ON** : **26/03/2026**

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**JUDGMENT**

**P. Kumararatnam, J.**

The above-named Accused-Appellant (hereinafter referred to as the Appellant) being aggrieved by the conviction and the sentence imposed on him on 23/03/2023 by the Learned High Court Judge of Colombo, preferred this appeal to this Court well within the appealable time.

The Appellant was indicted by the Attorney General in the High Court of Anuradhapura with one charge of possession of an automatic T-56 gun punishable under Section 22(3) of the Firearms Act as amended by Act No. 22 of 1996 and the 2nd charge for the possession of 26 live bullets punishable under Section 27(1) of the Explosive Act.

After trial, the Appellant was found guilty on both counts and the Learned High Court Judge of Anuradhapura has imposed a sentence of life imprisonment for the 1st count and fine of Rs.10,000/- with a default sentence of 03 months simple imprisonment imposed on the 2nd count.

The Learned President's Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

**The Learned President's Counsel, on behalf of the Appellant had raised the following appeal grounds:**

1. The evidence led by the prosecution does not support the prosecution version.
2. The learned High Court Judge has shifted the burden of proof to the defence.

At the trial, PW1 IP/Kumarasinghe, and PW2 SI/Ubayananda, were called by the prosecution to give evidence on behalf of the prosecution. The Government Analyst Report was admitted and marked under Section 420 of the Code of Criminal Procedure Act. Further, the prosecution had marked productions P1-P5. The Appellant had made a dock statement and closed his case.

**Background of the case**

According to PW1, he was the Officer-In-Charge of the Nochchiyagama Police Station at the time of the raid. PW1 had received some information from a private informant that a person who is a permanent resident of his police division had smuggled a weapon from Colombo. This witness had not entered this information in the relevant books but said that he communicated the same to the Assistant Superintendent of the police division and had left for the raid. After mobilising his team around the place called Galdiwewa, Pahamunegoma and Ralapanawa, he had directly gone to a house said to be belonging to the Appellant and had then arrested him and recovered an assembled T-56-gun with a magazine under a mattress in the room.

PW2, was called to give evidence to corroborate the evidence given by PW1.

The gun and the magazine which were recovered during the raid contained 26 live bullets and was handed over to the reserve Police Constable 48492 Jayakody marked under Production Register No.99/11.

The productions alleged to have been recovered from the Appellant had been forwarded to the Government Analyst. According to the Government Analyst's Report, the gun had been categorised as an automatic weapon and the bullets were categorised as explosives.

In respect of the 1st ground of appeal advanced by the Appellant, the learned President's Counsel contended that the so-called raid conducted by the police is a fabricated and premeditated one.

Under this ground the learned Presidents Counsel contended that the notes taken down by PW1, which was highly relied on by the prosecution, does not contain relevant material.

In cases such as this, the police would essentially act as the main source of information, and such information would later become the evidence that is used in a criminal prosecution. Accordingly, the police would bear the primary responsibility to acquire such evidence as accurately as possible without any contradictions, being the investigative arm of the state.

Thereby, it is of utmost importance that the best evidence rule is followed in criminal trials, where an accused would be considered innocent until proven guilty where the guilt of such an accused would have to be proven beyond reasonable doubt and not just on a mere balance of probabilities.

The concept of "reasonable doubt" refers to the legal principle which establishes that insufficient evidence prevents the conviction of a defendant of a crime. The prosecution would bear the weight of proving the defendant's guilt in respect of a crime with which he has been charged to the judge, in order to prove why the defendant should be convicted. The phrase "beyond

a reasonable doubt" would therefore mean that the evidence and arguments brought forward by the prosecution to establish the defendant's guilt is done so clearly, in a manner that it is accepted as fact by any rational person.

As such, the prosecution would have an obligation to collect and present the best possible evidence to prove the accused's guilt; where the investigating officers are duty bound to collect the best possible evidence, and the public prosecutor is bound to present the best possible evidence to prove an alleged fact or circumstance leading to the commission of the offence. Failing to lead the best evidence could make the prosecution's case vulnerable, as an adverse inference could be drawn against such evidence on the basis that such a failure led to a suppression of the best evidence.

**Bradford Smith,** Law Commission, WWW.smithlitigation.com 2014 states that:

> *"Good police note taking is important for two reasons. First, it invariably bolsters the credibility of the police officer giving evidence. Second, it promotes the proper administration of criminal justice by facilitating the proof of facts".*

In the case of **Manu Sharma [Manu Sharma v. State (NCT of Delhi),** (2010) 6 SCC 1 it was held:

> *"What is the significance of requiring an investigating officer/officer in charge of a police station to maintain a diary? The purpose and the object seems to be quite clear that there should be fairness in investigation, transparency and a record should be maintained to ensure a proper investigation."*

In **Miller v. Minister of Pensions** (1947) 2 All E.R. 372 Denning J, in the Kings Bench held that:

> *"The evidence must reach the same degree of cogency as is required in a criminal case before an accused person is found guilty. That degree is well settled. It need not reach certainty, but it must carry high degree of probability"*

In the case of **The King Vs. W. P. Buckley** 43 NLR 474, it was stated by Howard, C.J.:

> "*In arriving at a verdict of guilty, the majority of the jury must have viewed the evidence in sections accepted and convicted the appellant on those parts that were satisfactory and disregard those facts that pointed to the improbability of the story put forward by the Crown. The jury should have viewed the evidence as a whole. If they had done so, we are of opinion that they must have had a reasonable doubt as to the guilt of the appellant. The verdict is in our opinion, unreasonable, in as much as taken as a whole the evidence does not support the conviction."*

In the case of **Sivathasan v. Attorney General** [2021] 2 SLR 290 it was held:

> *"A reasonable doubt is a real or actual and a substantial doubt, as opposed to an imaginary or flimsy doubt that may arise in the mind of the decider of facts (judge or the jury, as the case may be), following an objective consideration of all the attendant facts and circumstances.*
>
> *A reasonable doubt is not the type of doubt that arises due to incorrect, abnormal or unreasonable comprehension of testimonies and other material which amount to evidence presented at the trial, or due to irrational fear, inappropriate sympathy, or unjustifiable mercy."*

PW1 had admitted that he had not entered the information received from his private informant in the relevant books. PW1 in his evidence told court that as an Officer-in-Charge he need not put that information in the relevant books. Further, the PW1 had admitted that he had not mentioned in his notes that he had knocked the door before the Appellant opened the door.

Section 1 of The Police Departmental Order No. A. 16, which lays down the rules to be followed by the police in relation to note taking, is reproduced below.

"*For the purpose of investigating crime or accidents a notebook is the most important record kept by a Police Officer. Notebooks should be regularly examined, initialled and dated, by Officer-in-Charge of Stations, Districts, Divisions and Provinces. The following rules regarding notebooks are to be strictly observed.*

*(I) All entries in a notebook will be in ink or indelible pencil.*

*(II) Notes relating to inquiries will be headed with the date, time and place at which they are written. On completion each note will be initialled and dated by the Officer making the entry.*

*(III) No blank space will be left.*

*(IV) Nothing will be rubbed out, altered, or interpolated. Every error will be crossed through by a single line so that it is still legible and will be enclosed in brackets.*

*(V) Entries will be made in the Notebook on every matter arising in the course of one's official duties. Entries will also be made when an Officer has by reason of sickness or other personal reasons to deviate from orders given to him when he was sent out on duty.*

*(VI) No leaves will be removed from the Notebook.*

*(VII) Notebooks will be examined, initialled, and dated by the Reserve Constable or Sergeant every time an Officer reports for or from duty. At every Instruction Class Notebooks will be examined, initialled and dated by the Officer holding such class.*

*(VIII) Officers when initialling and dating Notebooks will do so with a different coloured ink or pencil when possible and in small characters to save space.*

*(IX) Notebooks will always be carried when on duty, except on parade unless specifically ordered to do so.*

*(X) All Police Officers will when leaving the Service return any unfinished Notebook and re-fill to the Officer-in-Charge of the Station. Cost of any re-fill not returned will be recovered and credited to revenue."*

As per the rules laid out in this Departmental Order, police officers are obliged to immediately note down any information or intelligence regarding criminal movements or attempted grave offences in their Personal Note Book. If such information was received from a higher authority, the person's details must be noted and recorded in order to use such details as a basis for subsequent arrests. All information regarding suspected offences must be noted in writing. Such notes would be of utmost importance and would be crucial in justifying police actions such as arrests and would also be required for legal and transparent procedures.

PW1, in his evidence vehemently stated that he had not recorded the information received in his Police Note Book. The relevant pages are re-produced below:

<u>Page 64 of the brief.</u>

ප්‍ර : අපරාධයක් සම්බන්ධයෙන් තොරතුරක් ආවා නම් ඒ තොරතුර අපරාධ තොරතුරු පොතේ සටහන් වෙන්න ඕනේ නේද. මම අහන්නේ ඔබතුමාගෙන් බොහොම සරල ප්‍රශ්නයක්. ඔබට පෞද්ගලික ඔත්තුකරුවෙකු විසින් සෙන්බුකුට්ටි ආරච්චිලාගේ නිශ්ශංක යන අයගේ ගෙදර ගිණි අවියක් තිබෙන බවට තොරතුරක් ලබා දුන්නා නේද. එය ඔබ සටහන් කර තිබෙනවාද, නැද්ද කියලා කියන්න ?

උ : නැහැ. එවැන්නක් සටහන් කළේ නැහැ.

ප්‍ර : දැන් ඔබතුමා තමයි කියන්නේ එහෙම තොරතුරක් සටහන් කරන්නේ නැතුව මට තොරතුරක් ආවා. ආව ගමන් මම ගියා අත්අඩංගුවට ගන්න. ඒක නේද මෙම ගරු අධිකරණයට කියන්නේ. යම් තොරතුරක් ඔබට ආවා. ඒ තොරතුර අනුව ඔබ ගියා අත්අඩංගුවට ගන්න?

උ : මට යම් තොරතුරක් ආවා. ඒ තොරතුර සම්බන්ධයෙන් මා සංචාරය කරමින් එම තොරතුරේ සඳහන් දේවල් නිවැරදි ද යන්න පරීක්ෂා කර බැලුවා. ඊට පස්සේ අත්අඩංගුවට ගන්න ගියා.

Further, he had admitted that in his notes, he had not recorded that he knocked on the door before the Appellant could open the door. The two portions referred to above are very important as the Appellant had taken up the position that he was not arrested as stated by the prosecution. According to the Appellant, he was arrested at his sister's house while sleeping. In this instance, it is noted that**,** had PW1 taken down proper notes, he could have correctly answered the questions fired at him during the cross examination.

Further, PW1 had not taken any endeavour to establish that the Appellant and his family were the only occupants of the house from which the Appellant was arrested.

PW1 had stated that he arrested the Appellant, as two warrants were pending at that time.

Considering the evidence given by PW1, the probability of the raid as stated by the prosecution raises a serious doubt which certainly affects the outcome of the case.

In the same ground, the Learned President's Counsel contended that the Learned High Court Judge had allowed the prosecution to lead bad character evidence under Section 54 of the Evidence Ordinance, thereby acting on that evidence, the Learned High Court Judge had erroneously misdirected himself.

**Section 54 of the Evidence Ordinance states:**

> In criminal proceedings the fact that the accused person has a bad character is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.
>
> Explanation 1.- This section does not apply to cases in which the bad character of any person is itself a fact in issue.
>
> Explanation 2.- A previous conviction is relevant as evidence of bad character in such case.

As a result, the fact that the person charged is of good character is always relevant in criminal proceedings. However, if the person has a bad character, that fact is generally irrelevant. Hence, the prosecution should be mindful not to lead character evidence of the accused, unless evidence has been given that he has a good character. The trial judge also has a responsibility to ensure that bad character evidence of the accused does not creep into the court proceedings.

In **R. G. Moses v. The Queen 75 NLR 121** the Court held:

> *" that the conviction of the Appellant must be quashed on the ground that the evidence of the previous conviction, which was inadmissible according to Section 54 of the Evidence Ordinance, had been taken into account in the trial judge's judgment and was in a high degree prejudicial to the Appellant. In such a case the substantial question is whether or not the accused has been deprived a fair trial".*

In **L.C. Fernando v. The Republic of Sri Lanka 79(II) NLR 313** the court held (Wijesundera, J. dissenting) that:

> *"(a) that the evidence of 'T' was both irrelevant and inadmissible and in view of the express prohibition against the admission of such evidence*

*in section 54 of the Evidence Ordinance and its highly prejudicial nature, such evidence should have been excluded by the trial judge; the improper reception of such evidence had resulted in the accused's chance of having a fair trial being prejudiced and in a failure of justice".*

In **Makin v. Attorney General for New South Wales [1894] A.C 57** Lord Herschell held that:

*"It is not competent for the prosecution to adduce evidence tending to show that the accused had been guilty of criminal acts other than those covered by the indictment, for the purpose of leading to the conclusion that he is likely, from his criminal conduct or character to have committed the offence, for which he is being tried".*

As stated above, PW1 had stated that two warrants were pending against the Appellant when he was arrested for this case.

Further, in the re-examination, the prosecution had led character evidence as opposed to good character of the Appellant. The relevant portion is re-produced below:

<u>Page 76 of the brief.</u>

ප්‍ර : මහත්මයා මීට පෙර මෙම චූදිතව හඳුනනවාද ?

උ : මෙම චූදිත අපරාධ වලට නැඹුරුතාවයක් තිබෙන කෙනෙක් බවත්, විවිධ ප්‍රදේශ වල නඩු තිබෙන බවත්, ඒ සම්බන්ධයෙන් දැනුමක් මගෙත් තිබුණා.

The learned High Court had not taken any steps to disregard the evidence which clearly discloses the character of the Appellant. The learned High Court Judge without the said evidence had simply relied on the same when he considered this case.

This evidence, with no doubt, clearly indicates that the prosecution had placed bad character evidence, whereas, the Appellant had not presented good character evidence. By leading this evidence, either accidently or purposefully, the prosecution had paved the way for the character evidence to creep into the proceedings. Ironically, the Learned High Court Judge had considered this evidence in his judgment. Thus, the Appellant had been denied a fair trial.

The Learned High Court Judge, before he could analyse the entire evidence presented by both parties, by relying on the evidence given by PW1 and PW2, concluded that the arrest and recovery of the firearm and ammunition from the Appellant could be accepted beyond a reasonable doubt. This approach of the Learned High Court Judge clearly demonstrates that he had been greatly influenced by the bad character evidence which had creeped into the court proceedings. The prosecution should not have led evidence which contained bad character evidence of the Appellant. This leads to a denial of a fair trial.

In the case of **Shiv Kumar v. Hukam Chand and Anr [1999] 7 SCC 104** the court observed that:

> "*The expected attitude of the Public Prosecutor while conducting prosecution must be couched in fairness not only to the Court and to the investigating agencies but to the accused as well. If an accused is entitled to any legitimate benefit during trial the Public Prosecutor should not scuttle/conceal it. On the contrary, it is the duty of the Public Prosecutor to winch it to the force and make it available to the accused. Even if the defence counsel overlooked it, Public Prosecutor has the added responsibility to bring it to the notice of the Court if it comes to his knowledge*"

In the case of **Medichetty Ramakistiah & ors. v. The State of Andhra Pradesh** (AIR 1959 A.P. 659) it was held that:

> *"A prosecution, to use a familiar phrase, ought not to be a persecution. The principle that the Public Prosecutor should be scrupulously fair to the licensed and present his case with detachment and without evincing any anxiety to secure a conviction, is based upon high policy and as such courts should be astute to suffer no inroad upon its integrity. Otherwise, there will be no guarantee that the trial will be as fair to the accused as a criminal trial ought to be. The State and the Public Prosecutor acting for it are only supposed to be putting all the facts of the case before the Court to obtain its decision thereon and not to obtain a conviction by any means fair or foul."*

Hence, I conclude this ground of appeal has merit.

In the second ground of appeal, the learned President's Counsel contended that the learned High Court had reverted the presumption of innocence towards the defence.

The Appellant in his dock statement admitted that he was arrested by officers at his sister's place. He vehemently denies being in possession of any dangerous weapon in his custody. His position was that this case had been fabricated against him.

When considering the defence evidence, the learned High Court Judge had reverted the presumption of innocence stating that the Appellant has to prove what he has taken in his defence. This is a clear misdirection as reverting the presumption of innocence is unknown and not recognised in a criminal prosecution.

In a criminal trial, as continuously stated by the Appellate Court the burden of proving a case entirely rests on the hands of the prosecution and this

responsibility never shifts to the defence unless the defence takes up a plea under a general or special exception of the Penal Code.

In **H. M. Mahinda Herath v. The Attorney General** CA/21/2003 in Appellate Court Judgments (Unreported) 2005 at page 35-39 the court held that:

> *"Where it was held that in a criminal case burden is always on the prosecution to prove the charge levelled against the accused beyond reasonable doubt. The trial judge must always bear in mind that the accused is presumed to be innocent until the charge against the accused is proved beyond reasonable grounds".*

The learned Counsel for the Appellant had cited two paragraphs of the judgment and argued that the learned High Court Judge had reversed the presumption of innocence and thereby denied a fair trial to the Appellant.

The learned High Court Judge in his judgment at Pages 152-153 stated as follows:

<u>3 and 4 of the brief.</u>

ඉහත පැමිණිල්ලේ සාක්ෂි කෙරෙහි අවධානය යොමු කිරීමේ දී, චූදිත සිටි නිවස පිළිබඳව හරස් ප්‍රශ්න වලදීත් අසා ඇති නමුත් එම සාක්ෂි වලින් පැහැදිලිව අනාවරණය වී ඇත්තේ, එම නිවසේ චූදිත පදිංචිව සිටින බවයි. කෙසේ වූවද, නැගණිය හෝ වෙනත් පුද්ගලයෙකු සිට නැත. එය සහෝදරියගේ නිවස වන්නේ නම්, ඒ පිළිබඳව කැඳවිය හැකිව තිබුණු හොඳම සාක්ෂිකරු සහෝදරිය වේ. එසේ නොවන්නේ නම්, වෙනත් සුදුසු සාක්ෂිකරුවෙකු කැඳවීමට හැකියව තිබිණ. මෙහිදී චූදිතට අපරාධ නඩුවේ මූලිකාංග ඔප්පු කිරීමේ කිසිදු භාරයක් නොපැවතිය ද, තමාගේ විත්තිවාචක පදනම් කරගන්නා කරුණු වල පැවැත්ම සම්බන්ධයෙන් එම කරුණු සනාථ කිරීමේ වගකීම ඔහුට පවතී. එබැවින්, පැමිණිල්ලේ සාක්ෂි මගින් ඔහුගේ නිවසේ සිට අත්අඩංගුවට ගත් බවට ප්‍රකාශ කරන්නේ නම් එලෙස නොවන බවට පෙන්වා දීම සඳහා සාක්ෂිකරුවන් කැඳවීමට හැකියාව තිබිණ.

තවද, චූදිත වෙනුවෙන් සඳහන් කර ඇත්තේ චූදිත අත්අඩංගුවට පත්වූයේ සහෝදරියගේ නිවසේ සිට බවයි. එසේ නම් එම නිවස සහෝදරියගේ බව චූදිත එම නිවසේ පදිංචි නොමැති බව සාක්ෂිකරුවන් මගින් පෙන්වා දිය හැකිව තිබුණත් ඒ සම්බන්ධයෙන් කිසිඳු පියවරක් ගෙන නැත.

The two paragraphs of the judgment cited above clearly demonstrates that the learned High Court judge had reversed the burden of proof, which is unknown to the criminal prosecution. As contended by the Counsel for the Appellant this deviation had denied a fair trial to the Appellant.

The concept of fair trial is a fundamental principle in every judicial system. In another sense, the notion of a fair trial secures justice. A trial in criminal jurisprudence is a judicial examination or determination of the issues at the hand of the Court to arrive at a conclusion whether the accused is guilty of the offence or not. An accused has the right to a fair trial, where the accused's innocence or guilt in respect of the alleged crime will be ascertained. This right remains an internationally recognised and respected human right, as fair trials are essential in discovering the truth and would therefore be of utmost importance to each party involved in a case.

The single most important criterion in evaluating the fairness of a trial is the observance of the principle of equality of arms between the defence and the prosecution. Equality of arms, which must be observed throughout the trial, means that both parties are treated in a manner which ensures their procedurally equal position during the course of a trial.

In this case as stated earlier, the Learned Trial Judge had come to a conclusion that the evidence given by PW1 and PW2 could be accepted as true regarding the raid conducted in respect of the Appellant. This clearly shows that the Learned High Court Judge has been highly influenced by the inadmissible or prejudicial evidence led by the prosecution. Further, the Learned High Court Judge has not mentioned in his judgment that he disregards the inadmissible or prejudicial evidence in deciding this case. Hence, this ground also has merit.

The pleaded grounds of appeal above have merits which certainly disturb the judgment of the learned High Court Judge.

Due to the aforesaid reasons, I set aside the conviction and the sentence dated 23/03/2023 imposed on the Appellant by the learned High Court Judge of Anuradhapura. Therefore, I acquit him from both charges.

Accordingly, the appeal is allowed.

The Registrar of this Court is directed to send this judgment to the High Court of Anuradhapura along with the original case record.

**JUDGE OF THE COURT OF APPEAL**

**R. P. Hettiarachchi, J.**

I agree.

**JUDGE OF THE COURT OF APPEAL**